

HOUSE No. 1305

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel J. Ryan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to help patients and reduce health care costs by ensuring patient adherence to medications.

PETITION OF:

NAME:

Daniel J. Ryan

DISTRICT/ADDRESS:

2nd Suffolk

DATE ADDED:

1/17/2025

HOUSE No. 1305

By Representative Ryan of Boston, a petition (accompanied by bill, House, No. 1305) of Daniel J. Ryan relative to further regulating individual or group health insurance policies providing prescription drug coverage. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1135 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to help patients and reduce health care costs by ensuring patient adherence to medications.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. An individual or group health insurance policy providing prescription drug
2 coverage in the state must permit and apply a pro-rated daily cost-sharing rate to prescriptions
3 that are dispensed by a network pharmacy for a partial supply if the prescriber or pharmacist
4 determines the fill or refill to be in the best interest of the patient and the patient requests or
5 agrees to a partial supply for the purpose of synchronizing the patient's medications.

6 No individual or group health insurance policy providing prescription drug coverage shall
7 deny coverage for the dispensing of a medication that is dispensed by a network pharmacy on the
8 basis that the dispensing is for a partial supply if the prescriber or pharmacist determines the fill
9 or refill to be in the best interest of the patient and the patient requests or agrees to a partial

10 supply for the purpose of synchronizing the patient's medications. The individual or group health
11 plan must allow a pharmacy to override any denial codes indicating that a prescription is being
12 refilled too soon for the purposes of medication synchronization.

13 No individual or group health insurance policy providing prescription drug coverage shall
14 use payment structures incorporating pro-rated dispensing fees. Dispensing fees for partially
15 filled or refilled prescriptions shall be paid in full for each prescription dispensed, regardless of
16 any pro-rated copay for the beneficiary or fee paid for alignment services.